



CHAPTER xxix.

An Act² to confer further powers upon the Blyth and Cowpen² Gas Company. A.D. 1904.
[24th June 1904.]

WHEREAS by the Blyth and Cowpen Gas Act 1887 (in this Act² called "the Act of 1887") the Blyth and Cowpen Gas Light Company Limited was dissolved and the proprietors therein were reincorporated by the name of "the Blyth and Cowpen Gas Company" (in this Act called "the Company") and were empowered to supply gas within the townships of Newsham and South Blyth and Cowpen all in the county of Northumberland : 50 & 51 Vict.
c. lxxxvii.

And whereas by the Act of 1887 the capital of the Company was fixed at thirty-seven thousand five hundred pounds (including the capital of seventeen thousand five hundred pounds then already raised) and the Company were empowered to borrow on mortgage of the undertaking any sum or sums not exceeding five thousand pounds [in respect of the original capital of the limited company and one-fourth part of the amount of the additional capital by that Act authorised :

And whereas the whole of the share capital of the Company has [been issued and expended or allocated and has been raised as follows :—

By the issue of one thousand seven hundred and fifty fully paid-up ordinary shares of ten pounds each bearing dividend at the rate of ten per centum per annum ;

By the creation and issue of one thousand three hundred and thirty-six ordinary shares of ten pounds each bearing dividend at the rate of seven per centum per annum being the number of shares issued to raise including the premiums the sum of nineteen thousand nine hundred and ninety-one pounds :

[Price 1s.]

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And whereas the Company have borrowed upon mortgage of the undertaking and now owe the sum of ten thousand pounds but have not issued any debenture stock :

And whereas it is expedient that provision should be made as in this Act contained for the conversion and consolidation of the ordinary shares of the Company into one stock bearing a uniform rate of dividend of five per centum per annum subject to increase or reduction as in this Act provided :

And whereas it is expedient that the Company should be empowered to raise additional capital for the purposes of this Act and for the general purposes of their undertaking :

And whereas the demand for gas within the limits of supply of the Company is increasing and it is expedient that the Company should be authorised to erect additional works for the manufacture and storage of gas and the manufacture and conversion of residual products upon the lands described in the Schedule to this Act which lands belong or are reputed to belong to the Company :

And whereas it is expedient that the other provisions hereinafter contained should be made :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Blyth and Cowpen Gas Act 1904.

Incorporation of Acts.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act :—

The Lands Clauses Acts except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement ; and

The Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 Provided that section 13 of the former Act shall be read as if the words “ or any premises ” were inserted after the words “ private building.”

3. The clauses and provisions of the Companies Consolidation Act 1845 with respect to the following matters (that is to say) :—

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Application
of parts of
Companies
Clauses Acts.

- The distribution of the capital of the Company into shares ;
- The transfer or transmission of shares ;
- The payment of subscriptions and the means of enforcing the payment of calls ;
- The forfeiture of shares for nonpayment of calls ;
- The remedies of creditors of the Company against the shareholders ;
- The borrowing of money by the Company on mortgage or bond ;
- The consolidation of the shares into stock ;
- The making of dividends ;
- The giving of notices ; and
- The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts shall extend and apply to the Company and to the additional capital which they are by this Act authorised to raise.

4. The Company may upon the lands described in the Schedule to this Act erect and maintain gasworks retort houses retorts gasholders purifiers mains pipes machinery and other apparatus works and conveniences and may do such acts as they may think fit for the manufacture conversion and supply of gas coke tar pitch ammoniacal liquor and other residual products obtained in the manufacture of gas and on those lands may make store and convert gas and any residual products and any other substances products or matters producible therefrom or used in relation to the production or manufacture thereof.

Powers as to
construction
and main-
tenance of
gasworks
&c. on lands
described in
Schedule.

5. The Company may for the purposes of their undertaking purchase or take on lease and hold (by agreement but not otherwise) in addition to the lands described in the Schedule to this Act and the lands now held by them under the powers of the Act of 1887 any lands and hereditaments not exceeding in the whole ten acres which the Company may require for the purposes of or connected with their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall

Power to
purchase
lands by
agreement.

A.D. 1904. — be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Act of 1887 and this Act.

CAPITAL.

Consolidation and conversion of capital.

6.—(1) On the first day of January one thousand nine hundred and five the ordinary shares of the Company shall by virtue of this Act be consolidated and converted into an equivalent amount of ordinary stock bearing a uniform dividend at the rate of five per centum per annum as follows (that is to say):—

One thousand seven hundred and fifty ordinary shares with a dividend of ten per centum per annum into thirty-five thousand pounds ordinary stock;

One thousand three hundred and thirty-six ordinary shares with a dividend of seven per centum per annum into eighteen thousand seven hundred and four pounds ordinary stock.

(2) The ordinary stock shall be divided among and vested in the several persons who on the said first day of January one thousand nine hundred and five are registered on the books of the Company as holders of the ordinary share capital in the Company in the proportion of twenty pounds of such stock for each ordinary share entitled to a dividend of ten per centum per annum and fourteen pounds of such stock for each ordinary share entitled to a dividend of seven per centum per annum then held by them respectively.

(3) The Company shall create and issue ordinary stock sufficient for the purposes aforesaid.

(4) All persons in whom any such ordinary stock shall be so vested shall stand possessed thereof upon the like trusts and subject and liable to the like powers provisions declarations agreements charges liens and incumbrances upon or to which the shares in respect of which such ordinary stock is so vested were immediately before the said first day of January one thousand nine hundred and five held or subject and every deed or other instrument and every will or testamentary disposition of or affecting or purporting to affect or deal with such shares shall take effect with reference to the whole or a proportionate part as the case may be of the ordinary stock substituted therefor.

(5) The Company shall call in and cancel all the certificates of the existing ordinary shares and shall issue in lieu thereof to every holder thereof new certificates for the amount of ordinary stock to which he is entitled under the provisions of this section.

(6) Every new certificate shall be issued free of charge.

A.D. 1904.

(7) No holder of the existing ordinary shares shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the share certificates for which such certificate of stock is substituted or shall have proved to the reasonable satisfaction of the Company the loss thereof.

(8) Subject to the provisions of this section the provisions of the Companies Clauses Consolidation Act 1845 with respect to the consolidation of shares into stock shall extend and apply to the ordinary stock.

7. The Company may raise additional capital not exceeding in the whole one hundred thousand pounds by the creation and issue of ordinary stock but such stock shall not vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred thousand pounds.

Power to raise additional capital.

8. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay dividend at the authorised rate on the ordinary stock the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth part of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort

If profits exceed amount limited excess may be invested and form an insurance fund.

A.D. 1904. — may be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth part as aforesaid.

Renewal fund.

9.—(1) The directors of the Company may if they think fit annually appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum on the paid-up capital of the Company including premiums to be called "the renewal fund" for the purpose of providing for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes.

(2) Such fund shall be invested in any securities in which trustees are for the time being authorised by law to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to ten per centum on the paid-up capital for the time being of the Company.

(3) When and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend.

(4) If such fund be at any time reduced below the said sum it may thereafter be made up in manner hereinbefore provided to that sum and so from time to time as often as such reduction shall happen.

(5) Resort may from time to time be had to such fund for the purposes aforesaid notwithstanding that the same may not have reached or may have been reduced below the full amount of ten per centum upon the capital of the Company as aforesaid.

Application of excess of profits.

10. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the interest on the debenture stock and dividend at the authorised rate on the ordinary stock of the Company the excess or such portion of it as is not carried to the reserve or insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

Power to create a reserve fund out of dividends.

11. When in any year the dividend on the ordinary stock shall exceed the standard rate (as hereinafter defined) by reason of the price charged by the Company for gas in such year being

below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums so set apart by the Company and any reserve fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the ordinary stock of the Company and save as in this Act provided no sum shall in any year be carried by the Company to a reserve fund.

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dends in
excess of
standard
rate of divi-
dend and
application
thereof.

12. Notwithstanding anything in this Act contained the Company shall when any stock created under the powers of this Act is to be issued and before offering the same to the holder of any stock in the Company and whether the ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale not inconsistent with the provisions of this Act as the directors of the Company shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of stock and that notice of the amount of the reserve price put upon such stock shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner Provided also that no priority shall be allowed to any holder of stock in the Company except that if any bid or offer by tender of any holder or holders of stock be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of stock shall be accepted in preference.

New stock
to be offered
by auction
or tender.

13. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase
money of
capital sold
to be paid
within three
months.

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Notice to be
given as to
sale of stock.

14. The intention to sell any such stock by auction or by tender shall be communicated in writing to the clerks of the urban district councils of Blyth and Cowpen and to the clerks of the rural district councils having authority within any part of the limits of supply of the Company and the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply.

Stock not
sold may be
offered to
shareholders
employees or
consumers.

15.—(1) When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserve price put upon the same for the purpose of sale by auction or tender or may be offered at such reserve price put upon the same for the purpose of sale by auction or tender to the holders of ordinary stock of the Company or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others.

(2) Any stock not so disposed of or so offered and not accepted within the time limited by the directors of the Company shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act and at such time or times as the directors of the Company may think fit and any stock not then sold may be again disposed of by the directors as aforesaid or offered to the holders of ordinary stock or to such employees or consumers at the reserve price put upon the same at such second auction or tender and so from time to time until the whole of such stock is sold.

Application
of premium
arising on
issue of
stock.

16. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend.

Power to bor-
row in respect
of original
capital.

17. The Company may forthwith after the passing of this Act borrow on mortgage of the undertaking in respect of the then

existing capital of thirty-seven thousand five hundred pounds any sums not exceeding in the whole thirteen thousand pounds. A.D. 1904.

18. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking in respect of the additional capital any sum or sums not exceeding in the whole one-third part of the amount at the time actually raised of the additional capital by this Act authorised to be raised but no part of any such sum or sums shall be borrowed until the whole of the capital at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company shall have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such capital has been issued and together with the premium (if any) has been fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. Power to borrow in respect of additional capital.

19. Section 43 (Appointment of receiver) of the Act of 1887 is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced under any such provision prior to the passing of this Act. Repealing existing provisions as to receiver.

20. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole. For appointment of receiver.

21. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock or mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages and charged upon Debenture stock.

A.D. 1904. — the undertaking Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture stock to be offered by auction or tender.

22. The provisions of this Act with respect to the disposal of stock by auction or tender shall extend and apply mutatis mutandis to and in respect of any debenture stock created by the Company under the powers of this Act.

Priority of mortgages and debenture stock over other debts.

23. All money to be raised by the Company on mortgage or by debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or pari passu with the interest or dividends on their mortgages or debenture stock.

Receipt in case of persons not sui juris.

24. If any money is payable to a shareholder stockholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application of money.

25. All money raised under this Act by the Company whether by stock debenture stock or borrowing shall be applied only to the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Profits of Company limited.

26. Except as by this Act provided the profits of the Company to be divided among the holders of the ordinary stock in any year shall not exceed the rate (in this Act called "the standard rate") of five pounds in respect of every one hundred pounds of such stock.

Amendment of section 37 of Act of 1887.

27. Section 37 (Dividend dependent upon price charged) of the Act of 1887 shall as from the first day of July one thousand nine hundred and five be read and have effect as if the words "any year" where used in that section had been "any half year" and the words "five shillings" had been "one shilling and threepence" and as if the words "one penny or more" where they first occur in that section had been "one penny or part of a penny" and the said section as so amended shall extend and apply to the ordinary capital of the Company.

28. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay down take up alter relay repair or renew in across or along or out of such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for and not inconsistent with the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

A.D. 1904.

Power to lay pipes in streets or roads not dedicated to public use.

29. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to lay down and utilise pipes for ancillary purposes.

30. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator of approved make or pattern and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Power to require use of anti-fluctuators for gas engines.

31.—(1) The Company may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines motors dynamos stoves ranges pipes fittings and other apparatus appliances and things (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and

Power to supply gas fittings and fittings not to be subject to distress.

A.D. 1904. do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or such rents and charges for and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the same are sold let fixed repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Gas consumers to give notice to Company before removing.

32. Twenty-four hours' notice in writing shall be given to the Company by every consumer of gas supplied by the Company before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be stated in every demand note for gas rent payable to the Company.

Notice of discontinuance.

33. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Power to refuse to supply persons in debt for other premises.

34. If a person requiring a supply of gas from the Company for any premises occupies or has occupied other premises at which gas was supplied to him by the Company and has not paid all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Period of error in defective meters.

35. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter and the amount of the allowance to be made to or of the surcharge to be

made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company. A.D. 1904.

36. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the Act of 1887 and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. No penalty in case of unavoidable cause.

37.—(1) The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon. Company may enter into contracts for supply of gas in bulk.

(2) The Company may enter into any contract with any person for a supply of gas to any premises within the limits of supply and such supply may be given for such purposes and subject to such terms and conditions as to price and otherwise as may be agreed upon between the Company and the person taking such supply. Provided that the Company shall not under the powers of this subsection give any preferential price as between any consumers who shall take a supply from the Company under similar conditions and circumstances.

(3) The Company shall not supply gas under any such contract as aforesaid if and so long as such supply would interfere with the supply of gas to private consumers.

38. The Company may if they think fit allow discounts or rebates not exceeding ten per centum to consumers of gas in consideration of the payment of gas rents upon such days as the directors may fix for the payment of gas rents by any such consumers and an additional amount by way of discount or rebate not exceeding fifteen per centum in respect of large consumption upon such scale and subject to such conditions and regulations as Discounts.

A.D. 1904. the Company may prescribe Provided that such discounts shall be of equal amount under like circumstances to all consumers Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Quality and testing of gas.

39.—(1) From and after the first day of January one thousand nine hundred and five section 65 (Quality of gas) and section 67 (Burner) of the Act of 1887 shall be and the same are hereby repealed.

(2) The prescribed number of candles shall be fourteen.

(3) The prescribed burner shall be Sugg's standard Argand burner for fourteen-candle gas (commonly known as "the Wandsworth test burner") with a six-inch by one-and-five-eighth-inch glass chimney.

(4) The standard used shall be Harcourt's ten-candle pentane lamp with table photometer.

Altering time of holding ordinary meetings.

40. After the passing of this Act the ordinary meetings of the Company shall notwithstanding anything in section 49 (First ordinary meeting) of the Act of 1887 be held twice in every year in the months of March and August or at such other time or times as shall be appointed for that purpose by a resolution passed at a general meeting.

Quorum for meetings of Company.

41. On and after the first day of January one thousand nine hundred and five section 50 (Quorum for meetings of Company) of the Act of 1887 shall be and the same is hereby repealed and the quorum of all general meetings whether ordinary or extraordinary shall be seven stockholders present in person or by proxy holding not less in the aggregate than two thousand pounds in ordinary stock of the Company.

Scale of voting.

42.—(1) As from the first day of January one thousand nine hundred and five every holder of ordinary stock shall be entitled to one vote for every twenty-five pounds of stock held by him up to one hundred pounds and to an additional vote for every fifty pounds of stock beyond the first hundred pounds held by him up to one thousand pounds and an additional vote for every hundred pounds of stock beyond the first thousand pounds held by him.

(2) Section 51 (Scale of voting) of the Act of 1887 shall as from the said first day of January one thousand nine hundred and five be and the same is hereby repealed.

Qualification of directors.

43.—(1) As from the first day of January one thousand nine hundred and five section 53 (Qualification of directors) of the Act of 1887 shall be and the same is hereby repealed.

(2) The qualification of a director of the Company shall be the possession of not less than five hundred pounds of ordinary stock. A.D. 1904.
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(3) The Company may from time to time vary the number of the directors of the Company but so that the number of directors shall not at any time be less than five nor more than nine.

(4) If any of the directors shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(5) The continuing directors may act notwithstanding any vacancy in the number of directors. Provided that if the number of directors shall by such vacancy be reduced below five the continuing directors shall elect another director in manner provided by section 89 of the Companies Clauses Consolidation Act 1845.

44. After the passing of this Act no person not being a retiring director or auditor shall be eligible to be elected a director or auditor unless notice in writing be given to the secretary or left at the principal office of the Company ten days at least before the day of election that such person will be proposed to be elected a director or auditor and the secretary of the Company shall during such ten days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office. Any such person shall have been the holder of the qualifying amount of stock for at least six months prior to his election. Notice to be given of any person desirous to be elected as director or auditor.

45. Proceedings commenced before the first day of January one thousand nine hundred and five for the recovery of any demand not exceeding fifty pounds and proceedings taken on and after that date for the recovery of any demand not exceeding one hundred pounds made under the authority of this Act or the Act of 1887 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court. Recovery of demands not exceeding 100%.

46. All costs charges and expenses of and incident and preliminary to the applying for preparing obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1904. The SCHEDULE referred to in the foregoing Act.

LANDS ON WHICH THE COMPANY MAY MANUFACTURE GAS AND
RESIDUAL PRODUCTS AND STORE GAS IN ADDITION TO THE
LANDS ALREADY AUTHORISED TO BE USED FOR THOSE PURPOSES
BY THE ACT OF 1887.

Certain lands in the parish and urban district of Blyth in the county of Northumberland comprising an area of about 909 square yards adjoining on the western and northern sides thereof the existing works of the Company and bounded on the eastern side by the footpath leading from Blyth to Cowpen Quay and on the south by lands belonging or reputed to belong to the Right Honourable Mathew White Viscount Ridley.

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E. PONSONBY, 116, GRAFTON STREET, DUBLIN.